

# Registration of Marriages of Expatriate Bahá'ís Married in Iran

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THE UNIVERSAL HOUSE OF JUSTICE

3 February 2002

To selected National Spiritual Assemblies

Dear Bahá'í Friends,

The Universal House of Justice has asked us to write to your National Spiritual Assemblies concerning the possibility which should now exist for expatriate Bahá'ís who were married in Iran to have their marriages registered through the Iranian Embassy, in the same way as Bahá'ís are benefiting in Iran under new arrangements made by the government of that country. This registration could in turn facilitate the recognition of their marriages with the government authorities in their countries of residence.

While Zoroastrians, Jews and Christians are recognized as religious minorities in the Islamic Republic of Iran, the Bahá'ís are not, and therefore could not have their marriages registered in official records. The only method by which this could be done previously was to prepare an affidavit through a notary public who did not require the couple to state their religion. This was, however, blocked by the government by the issuance of an executive circular letter dated 6 March 1978 from the Department of Personal Status, which instructed all registry offices that, “when preparing affidavits, they should specify the couple’s religions, which are recognized in the Constitution of Iran...”.

Two years ago, however, the 1978 circular letter was annulled, providing by extension a de facto opportunity for the Bahá'ís in Iran to register their marriages in their birth certificates. It should be noted that this opportunity was made possible through an administrative act and does not give any recognition to Bahá'í marriage, and that this administrative decision could be rescinded at any time. However, at present, the friends may approach the Iranian Embassies under your guidance and on the basis of the information that follows.

We are enclosing copies of two letters issued by the government of Iran, together with their provisional English translations. The first is a circular letter dated 13 January 2000 from the Tīhrán provincial department of the Iranian National Registry of Documents and Properties to the Department of Registry for Tīhrán Province, which includes the statement, “there is no objection to preparing the marriage affidavit without stating the religion of the couple”. The second enclosure is a letter dated 26 January 2000 from the Office of the Director of the National Registry of Personal Status to the Department of Registry of Personal Status. You will notice that this document not only confirms the substance of the letter of 13 January, by stating that registry offices should be instructed “to register the marriage of those who present an affidavit stating their marriage, without mentioning the religion of the couple, and also to register them as such in documents and certificates of personal status”, but that copies of it were sent to the Minister of the Interior and other senior government officials.

The friends should take copies of these documents with them and make reference to them when they go to the Embassy. They should request that a similar arrangement be made through the Embassy, so that Bahá'ís who are now resident in your countries and who were married in Iran in accordance with the laws of their

Faith may then register their marriages with the government. The Embassy may require some time to make enquiries in Iran about the matter.

Should the friends be hesitant to visit the Embassy, they may instead write a letter to the same effect, enclosing the necessary documents.

The House of Justice looks forward to receiving, in due course, information from you on the outcome of these endeavors.

With loving Bahá'í greetings,

Department of the Secretariat

[signed: The Universal House of Justice]